Execution Version

SECOND AMENDMENT

TO

GROUND LEASE

FOR

REAL ESTATE PARCEL EC-2C

BETWEEN

CHICAGO TITLE LAND TRUST COMPANY, AS TRUSTEE UNDER TRUST AGREEMENT DATED

AS OF DECEMBER 1, 2007 AND KNOWN AS TRUST NO. 1114334, as Lessor

AND

NORTH SHORE ICE ARENA, LLC, an Illinois limited liability company, as Lessee

DATED AS OF: September 1, 2012

SECOND AMENDMENT TO GROUND LEASE

This SECOND AMENDMENT TO GROUND LEASE (this "Amendment") is made effective as of September 1, 2012 ("Effective Date") by and between CHICAGO TITLE LAND TRUST COMPANY, not personally, but solely as Trustee under a Trust Agreement dated as of December 1, 2007 and known as Trust No. 1114334 ("Lessor"), and NORTH SHORE ICE ARENA, LLC, an Illinois limited liability company ("Lessee").

A.

RECITALS

Lessor and Lessee entered into that certain Ground Lease dated as of December 1, 2007 ("Original Ground Lease"), a Short Form and Memorandum of which was recorded on January 31, 2008 in the Office of the Recorder of Deeds of Cook County, Illinois as Document No. 0803133011, and pursuant to which Lessee leased from Lessor the premises legally described on Exhibit A to the Original Ground Lease, being the same premises legally described on Exhibit A attached hereto.

B. The Original Ground Lease was amended by that certain First Amendment to Ground Lease dated as of February 5, 2010 ("First Amendment"; and together with the Original Ground Lease, the "Current Ground Lease"), which provided at the request of Lessee certain relief from the full Base Rent required by the Original Ground Lease due to construction defects and construction cost overruns related to the development of the Project leading to higher than anticipated costs and lower than anticipated revenues for the Project.

C. Lessee has again requested additional relief from the Base Rent presently required under the Current Ground Lease by virtue of the First Amendment on account of unexpectedly high prior year real estate taxes and ongoing operating expenses, and Lessor and Lessor's Beneficiary have agreed to grant certain temporary additional relief to Lessee on the conditions set forth in this Second Amendment.

Accordingly, in consideration of their mutual agreements set forth herein, Lessor and Lessee hereby agree as follows:

1. Defined Terms. All capitalized terms used but not defined in this Second Amendment shall have the same meanings as in the Current Ground Lease, unless otherwise expressly provided in this Second Amendment. In addition, from and after the date hereof, the term "Ground Lease" as used in the Current Ground Lease and this Second Amendment shall mean and include the Current Ground Lease, as amended by this Second Amendment.

2.

Section 3.1.1. Effective as of the Effective Date, Section 3.1.1 of the Original Ground Lease is hereby deleted in its entirety and replaced with the following:

3.1.1 Initial Base Rent; Base Rent. Commencing as of the Commencement Date through and including the earlier of the date that the Project has been Substantially

Completed and the Hockey **Clubs** are using the Project or **September** 1, 2008 **("Construction Period"),** Lessee **shall pay monthly**, **in advance, initial base ground rent** in **an** amount equal to **Two** Thousand **Eighty Three and** 33/100 Dollars **($2,083.33**) ("**Initial Base Rent**"). **The** monthly **Initial Base Rent** amount **shall** be **prorated** for

partial months between the Commencement Date and end of **the Construction Period**. Commencing **as of the next day** following **the end** of **the Construction** Period **("**Base **Rent** Commencement **Date")**, **Lessee** shall **pay Base Rent**, on a monthly **basis,** in **advance, on** the **first day of each and every** month **in the applicable** amounts **set forth in the** following **Schedule of Base Rent**. **Beginning** on **the Base Rent Commencement Date**, **Base Rent shall** be **payable at a rate of Sixteen** Thousand **Six Hundred Sixty-**Six **and 67/100 Dollars ($16,666.67) per month**. **The** monthly **Base Rent amount** shall be **prorated** for **partial months** between **the Base Rent Commencement Date and the beginning of the first Lease Year**.

Schedule **of Base Rent**

Lease **Year**	**Annual Base Rent**	**Monthly** Payment
1 **(9/1/08-8/31/09)**		
2 **(9/1/09-8/31/10)**		
(9/1/09 - 10/31/09)		
(11/1/**09-12/31/09)**		
(1/1/10 **- 8/31/10)**		
	$ 200,000.04	
EA		**$ 16,666.67**
	$ 90,000.04	
SA		$ **16,666.67**
		$ 1,666.67
		$ **6,666.67**
3 (**9/1/10-8/31**/11)		

$ 80,000.04 $ 6,666.67

4 (9/1/11-8/31/12) $ 80,000.04 $ 6,666.67

5 (9/1/12-8/31/13) $ 31,999.92 $ 2,666.66

6 (9/1/13-8/31/14) $ 90,000.00 $ 7,500.00

7 (9/1/14-8/31/15) $ 124,000.08 $ 10,333.34

8 (9/1/15-8/31/16) $ 154,000.08 $ 12,833.34

9 (9/1/16-8/31/17) 186,000.00 $ 15,500.00

10 (9/1/17-8/31/18) $ 218,000.04 $ 18,166.67

11 (9/1/18-8/31/19) $ 251,000.04 $ 20,916.67

12 (9/1/19-8/31/20) $ 286,000.08 $ 23,833.34

13 (9/1/20-8/31/21) $ 321,000.00 $

26,750.00

14 (9/1/21-8/31/22)

$ 358,000.08 $ 29,833.34

15 (9/1/22-8/31/23) $ 396,000.00 $ 33,000.00

16 (9/1/23-8/31/24) $ 435,000.00 $ 36,250.00

17 (9/1/24-8/31/25) $ 435,000.00 $ 36,250.00

18 (9/1/25-8/31/26) $ 450,000.00 $ 37,500.00

19 (9/1/26-8/31/27) $ 450,000.00 $ 37,500.00

20 (9/1/27-8/31/28) 450,000.00 $ 37,500.00

21 (9/1/28-8/31/29) $ 450,000.00 $ 37,500.00

22 (9/1/29-8/31/30) 450,000.00 $ 37,500.00

23 (9/1/30-8/31/31) $ 485,360.04 $ 40,446.67

24 (9/1/31-8/31/32)

357,301.32

$

29,775.11

25 (9/1/32-8/31/33) $

357,301.32

$

29,775.11

26 (9/1/33-8/31/34) $

409,771.56

$

34,147.63

27 (9/1/34-8/31/35) $

409,771.56

$

34,147.63

28 (9/1/35-8/31/36)

$

409,771.56

$

34,147.63

29 (9/1/36-8/31/37)

$

30 (9/1/37-8/31/38)

$

EA SA

409,771.56

$

34,147.63

409,771.56

$

34,147.63

Lease Year

Annual Base Rent

Monthly Payment

31 (9/1/38-8/31/39)

$

470,112.24

$

39,176.02

32 (9/1/39-8/31/40) $

470,112.24

$

39,176.02

Base Rent for the remainder of the Initial Term shall be determined in accordance with Sections 3.1.2, 3.1.3 and 3.1.4 below. Notwithstanding the foregoing, Lessee shall be entitled to an abatement of Base Rent in an amount that equals a total of One Hundred Thousand and 08/100 Dollars ($100,000.08) against the monthly installments of Base Rent paid during the Term commencing as of the Base Rent Commencement Date as an accommodation by Lessor with respect to the anticipated additional costs Lessee will incur to remediate the known soil conditions on Parcel EC-2C. The foregoing abatement shall be earned on a monthly basis by Lessee beginning as of the first day of the calendar month following Substantial Completion of the Initial Project, and Lessee shall, subject to the last sentence of this paragraph, be entitled to deduct from the monthly payments of Base Rent set forth in the Schedule of Base Rent the appropriate amount set forth in the following table:

Months	Monthly Abatement	Total Annual Abatement
9/1/08-8/31/09	$	
9/1/09-8/31/10	$	
9/1/10-8/31/11	$	
9/1/11-8/31/12	1,666.67	$ 20,000.04
9/1/12-8/31/13	1,666.67	$ 20,000.04
	1,666.67	$ 20,000.04
	$ 1,666.66	
Total All Abatements		$ 20,000.04

EA GA

GA GAGA

$

19,999.92

100,000.08

SA SA SA EA EA

In no event shall Lessee be entitled to such abatement if a Default exists under this Lease at any time such abatement is due and in no event shall Lessee be entitled to any abatement in excess of the total abatement set forth above, regardless of whether the costs to remediate any soil conditions exceed the amount of the abatement or Lessee incurs other additional unanticipated costs in connection with the construction of the Initial Project or for any other reason.

3. Additional Base Rent Payments Required Where Cash Flow Exceeds Certain Amounts. Notwithstanding anything contained in Section 3.1.1 of the Ground Lease, as amended as set forth in Section 2 of this Second Amendment, if during any fiscal year of Lessee that ends at any time prior to September 1, 2031 (i.e., the commencement of Lease Year 24 (9/1/31-8/31/32)), the "Cash Available after Debt Service" as set forth in an Actual Cash Flow Statement for such fiscal year exceeds $50,000.00, the Actual Cash Flow Statement provided to Lessor shall be accompanied by a payment of additional Base Rent in an amount equal to the Cash Available after Debt Service less $50,000.00 ("Catch-Up Payment"). Each Catch-Up Payment shall be credited by Lessor as a prepayment of the Base Rent payable in Lease Year 23 until the total prepayments of Base Rent for Lease Year 23 equal $128,058.72. Thereafter, any additional Catch-Up Payments shall be credited by Lessor as a prepayment of the Base Rent payable in Lease Year 22 until the total prepayments of Base Rent for Lease Year 22 equal $92,698.68. Thereafter, any additional Catch-Up Payments shall be credited by Lessor as a

prepayment of the Base Rent payable in Lease Year 21 until the total prepayments of Base Rent for Lease Year 21 equal $92,698.68. Thereafter, any additional Catch-Up Payments shall be credited by Lessor as a prepayment of the Base Rent payable in Lease Year 20 until the total prepayments of Base Rent for Lease Year 20 equal $138,324.96. Thereafter, any additional Catch-Up Payments shall be credited by Lessor as a prepayment of the Base Rent payable in Lease Year 19 until the total prepayments of Base Rent for Lease Year 19 equal $138,324.96. Such obligation to make prepayment shall continue only until such time as the total of the Base Rent prepayments has reduced all remaining Base Rent payable in future years to the amounts that would have been payable for such Lease Years under Section 3.1.1 as set forth in the First Amendment ("Catch-Up Point"). So long as Lessee is not in Default under the Ground Lease at such time, if Lessee

believes, after calculation of the amount of any Catch-Up Payment, that Lessee has a need for all or any portion of the Catch-Up Payment that would otherwise be due to Lessor in order to fund any major repairs or capital improvements to the Project that cannot be paid for using amounts then on deposit in the Building Repair Reserve Fund (a/k/a Repair and Replacement Fund) and other cash on hand then held by Lessee, as evidenced by the most recent updated Capital Repair and Replacement Budget (hereinafter defined) provided to Lessor and Lessee's then current balance sheet (which Lessee shall update if necessary to the end of such fiscal year), then Lessee shall have the right to request in writing (i) a waiver of the obligation to make all or any portion the Catch-Up Payment that would otherwise be due, which written request shall include an explanation of the proposed major repairs or capital improvements for which Lessee proposes such Catch-Up Payment be used, and (ii) a meeting with a designated representative of Lessor's Beneficiary to explain such proposed uses and the documentation provided to Lessor. Lessor's Beneficiary shall grant the request for a meeting and following such meeting Lessor's Beneficiary shall take such request under advisement and within thirty (30) days shall determine whether to grant the request of Lessee to withhold all or any portion of the Catch-Up Payment to be used for the purposes set forth in the written request. If such request is granted, the Catch-Up Payment (or portion thereof) shall be used by Lessee strictly for the purposes set forth in the written request and Lessee shall provide a follow-up report to Lessor upon completion of such repairs or capital improvements to the Project demonstrating to Lessor's reasonable satisfaction that Lessee has complied with such request. If such request is denied, such determination shall be final and Lessee shall make the Catch-Up Payment.

4.

Additional Requirements to Be Met by Lessee. The following conditions shall be met by Lessee at all times during the term of the Ground Lease from and after the Effective Date of this Second Amendment and until such time as the first to occur of (x) the date on which Lessee has reached the Catch-Up Point, or (y) September 1, 2031:

Lessee has

(a) Current Cash Flow Projections; Capital Contributions. provided to Lessor the cash flow projections for Lessee's fiscal years 2012-2013 (7/1/12- 6/30/12) through 2031-2032 (7/1/31-6/30/32) that are attached hereto as Exhibit B ("Cash Flow Projections"), which show, among other items, that the cash available to Lessee after payment of debt service due to Amalgamated Bank of Chicago, as trustee ("Amalgamated"), as mortgagee under the Current Leasehold Mortgage (as defined in Exhibit D attached hereto), for Lessee's fiscal year 2012-2013 is projected to be a negative $163,528 ("Deficit"). In order to fund such Deficit, Lessee's members, Wilmette Hockey Association, Inc. ("WHA") and Winnetka Hockey Club, Inc. ("WHC"), shall each contribute fifty percent (50%) of the Deficit as and when needed in

order to (i) continue to operate the Project in the manner contemplated by the Cash Flow Projections, (ii) pay Lessee's operating expenses, including all maintenance and repairs to the Project (to the extent not reimbursed from the Building Repair Reserve Fund a/k/a the Building Repair Reserve Fund established under the Financing Documents), and (iii) otherwise satisfy the requirements of the Financing Documents (as such term is hereinafter defined). Neither WHA or WHC shall be required by Lessor to fund more than fifty percent (50%) of any Deficit, but Lessee understands and agrees that to the extent the failure by WHA and WHC to fund a sufficient amount causes a default to occur under the Financing Documents, such default shall be a Default under the Ground Lease. In no event shall Lessee return any capital or other amounts contributed or lent to Lessee by Lessee's members (whether during fiscal year 2012-2013, any prior fiscal years or in any future years) prior to the date when Lessee has completed the payment to Lessor of all Make-Up Payments and has reached the Catch-Up Point.

(b)

Annual Financial Reporting. In order to provide Lessor with evidence Lessee has satisfied the prohibition on returning capital contributions set forth in Section 3(a) above and to otherwise satisfy Lessor as to the financial condition of Lessee and Lessee's compliance with the obligations under the Current Leasehold Mortgage and related financing documents, including without limitation those documents identified on Exhibit D attached hereto (collectively, the "Financing Documents"), Lessee shall provide the following to Lessor:

(i)

within one hundred twenty (120) days following the end of each of Lessee's fiscal years, (1) a copy of the audited financial statements of Lessee that include the following: (x) balance sheet; (y) income statement; and (z) statement of sources and uses of cash, which shall be prepared by an independent certified public accounting firm retained by Lessee, shall contain an unqualified opinion of such firm and shall otherwise meet the requirements of Section 9.4 of the Loan Agreement (as defined in Exhibit D attached hereto;

(ii) within forty-five (45) days following the end of each of Lessee's fiscal years, an update to the Cash Flow Projections that includes the actual figures for the year just ended and updates the remaining years (through fiscal years 2031-2032), except that commencing in fiscal year 2028-2029, each year's

new Cash Flow Projections shall extend out for no fewer than the next five fiscal years;

(iii) within forty-five (45) days prior to the end of each of Lessee's fiscal years, a copy of the annual budget approved by the board of managers of Lessee ("Budget");

(iv) within forty-five (45) days following the end of each quarter in each of Lessee's fiscal years, an actual statement of revenue and expenses for such quarter and the fiscal year to date in the same format used for the Cash Flow Projections that includes a comparison of the actual results to the Budget for such fiscal year ("Actual Cash Flow Statement");

(v) within thirty (30) days following payment thereof, proof of payment of (1) each installment of the real estate taxes for the Project; and (2) each semi-annual bond payment;

(vi) upon submittal to Amalgamated copies of the following reports or documents provided by Lessee in accordance with the requirements of the Financing Documents:

(1) copies of any requests for disbursement of funds from the Building Repair Reserve Fund (as defined in Section 3.5 of the Tax Agreement, as defined in Exhibit D attached hereto; also called the Repair and Replacement Fund as defined in Section 4.3 of the Trust Indenture, as defined in Exhibit D attached hereto) and maintained by Amalgamated under the Financing Documents;

(2) a statement showing the amounts then remaining on deposit in the Building Repair Reserve Fund (a/k/a Repair and Replacement Fund) and all deposits and withdrawals from such fund during the prior reporting period;

(3) a schedule showing the projected deposits into and uses for the funds held

in the Building Repair Reserve Fund (a/k/a Repair and Replacement Fund) for items such as capital improvements, major repairs and ordinary course repairs for the next two to three fiscal years ("Capital Repair and Replacement Budget");

(4) copies of the annual certification to Amalgamated that Lessee has complied with the covenants contained in the Financing Documents, including a calculation of the Debt Service Coverage Ratio Lessee is obligated to maintain (as required by and as defined in Section 8.3 of the Loan Agreement); and

(5) copies of any other statements or reports provided to Amalgamated under the Financing Documents or at the request of Amalgamated;

(vii) within thirty (30) days following the end of each calendar year year (or following the end of such other twelve month period of time over which Amalgamated reports the activity in the following funds), a copy of the statement or statements produced by Amalgamated showing the activity during the prior calendar year (or such prior twelve-month period, as the case may be) in each of the following funds: (1) the Revenue Fund, (2) the Building Repair Reserve Fund a/k/a the Building Repair Reserve Fund, (3) the Bond Sinking Fund, (4) the Interest Fund, and (5) the Debt Service Reserve Fund;

(viii) upon filing with the Internal Revenue Service and the Illinois Attorney General, copies of the Form 990/Form AG990-IL Returns filed by WHA, WHC and Lessee; and

(ix) upon filing with the Illinois Secretary of State a copy of the Annual Report of Lessee.

(c) No Amendment of Financing Documents. Lessee shall not amend any of the Financing Documents without the consent of Lessor, which consent shall not be unreasonably withheld or delayed as long as the amount of each semi-annual bond payment (including both principal and interest) is not increased and the interest rate payable on the bonds is not increased.

(d) Signed Contracts for Ice Time from Members. As of the date of this Second Amendment the two members of Lessee, WHA and WHC, have each entered into contracts with Lessee for purchase of the total hours of ice on the two rinks on the Property outlined in Exhibit B and at the rates for the annual dollar amounts set forth in Exhibit C ("Contract Commitments") through July 31, 2023. In no event shall either WHA's or WHC's individual Contract Commitments be reduced without Lessor's consent, which consent shall not be unreasonably withheld or delayed. No later than May 31, 2023, if Lessee has not yet reached the Catch-Up Point, Lessee shall provide evidence to Lessor's Beneficiary that WHA and WHC have each entered into new contracts having a term expiring no earlier than the end of Lease Year 24 (9/1/31-8/31/32) or the end of Lessee's fiscal year in which Lessee reaches the Catch-Up Point with Annual Contract Amounts no less than the amounts for WHA and WHC, respectively, that are payable during Year 2022-2023 as set forth in Exhibit C.

(e) No Change in Management Company. Lessee shall not terminate or cancel the contract of the current manager of the Project, Club Sports Consulting Group, or any successor to Club Sports Consulting Group, without the consent of Lessor, which consent shall not be unreasonably withheld or delayed. Lessee shall notify Lessor of any proposed change in the management of the Project not less than thirty (30) days prior to the effective date of such proposed change in order to provide sufficient time to obtain the consent of Lessor to the replacement manager.

(f)

WHA and WHC Guaranty. WHA and WHC shall remain obligated under terms and provisions of the Guaranty of Payment and Performance of Ground Lease Obligations executed by WHA and WHC as of the date of this Second Amendment and delivered to Lessor concurrently with this Second Amendment. Each guarantor shall be liable for only fifty percent (50%) of any obligation and shall not be jointly or severally liable thereunder, but Lessee understands and agrees that if and to the extent the failure by WHA and WHC to fund the full amount of any such obligation results in a failure by Lessee to cure any Default under the Ground Lease, such Default may become an Event of Default, upon which Lessor shall be entitled to exercise its rights and remedies provided for in the Ground Lease on account of such Event of Default.

5.

Reaffirmation and Confirmation of Ground Lease. All of the terms, conditions, agreements, obligations and provisions set forth in the Ground Lease as hereby amended, modified and supplemented shall be and they hereby are reaffirmed, ratified and confirmed in their entirety and incorporated herein by reference as if fully set forth

herein.

6. Governing Law. This Second Amendment shall be governed by the laws of the State of Illinois, as may be amended from time to time, without giving effect to any choice or conflict of law provision or rule that would cause the application of the laws of any jurisdiction other than the State of Illinois.

7. No Further Amendments. Except as otherwise provided herein, in all other respects the Ground Lease shall remain unchanged and in full force and effect.

8. Executed Counterparts. This Second Amendment may be executed in one or more counterparts, each of which shall constitute an original, but all of which, when taken together shall constitute only one legal instrument. This Second Amendment shall become effective when copies hereof (when taken together) shall bear the signatures of both parties hereto.

9. Trustee Exculpation. This Second Amendment is executed by Chicago Title and Trust Company, as Trustee as aforesaid, solely in the exercise of the power and authority conferred upon and vested in said trustee in its capacity as such trustee (and said trustee hereby warrants that it possesses full power and authority to execute this instrument), and it is expressly understood and agreed that nothing contained in this Amendment shall be construed as creating any liability on said trustee in its capacity as trustee, personally to comply with the terms of this Second Amendment, except for a failure to act when or as directed, all such liability, if any, being expressly waived by every person now or hereafter claiming any right under this Second Amendment. It is hereby agreed that said trustee shall be permitted to attach the form of exculpation customarily used by it to all documents, agreements, instruments, or other writings executed by it.

[Signatures on following pages]

WITNESS the due execution **of this Second Amendment** by **Lessor** as **of the day and year first above written**.

LESSOR:

TITLE LAND TRUST CHICAGO

CORPORATE SEAL

CHICAGO COMPANY

ILLIN

OIS

CHICAGO TITLE LAND TRUST COMPANY,
not personally, but solely as Trustee as
aforesaid

By:

Printed Name: Title:

Harriet Deniseiwcz
Trust Officer

STATE OF ILLINOIS)
SS
ACKNOWLEDGMENT

COUNTY OF COOK

Harriet Denisewicz
-
Officer
the Trust/
President of CHICAGO TITLE LAND TRUST COMPANY, not personally but solely as Trustee under a Trust Agreement dated December 1, 2007, and known as Trust No. 1114334, who is personally known to me to be the same person whose name is subscribed to the foregoing instrument as such Trust Officer President appeared before me this day in person and acknowledged that she signed and delivered said instrument as his/her own free and voluntary act and as the free and voluntary act of said Bank, as Trustee as aforesaid, for the uses and purposes therein set forth.

6th
GIVEN under my hand and notarial seal, this day of November 2012.

to da
morusca

My Commission expires:

9

Notary Public

"OFFICIAL SEAL"
LIDIA MARINCA
NOTARY PUBLIC, STATE OF ILLINOIS My Commission Expires 04/30/2014

WITNESS the due execution of this Second Amendment by Lessee as of the day and year first above written.

LESSEE:

NORTH SHORE ICE ARENA, LLC, an Illinois limited liability company

By: Wilmette Hockey Association, Inc., an Illinois not-for-profit corporation, one of its members

By:

сликам

Charles J. Swith

Printed Name:esident

Its:

Attest:

a

LUBUHA NY

Printed Name: Y AN

Title:

Buan d

Memban

Attest:

He

Printed Name. chn Cadden

member

By: Winnetka Hockey Club, **Inc., an** Illinois not-**for-** profit **corporation, one** of **its**

members

By:

Printed Name: Michael J. Poresell Its: Resident

ACKNOWLEDGMENTS

STATE OF ILLINOIS

COUNTY OF COOK

by

SS

This instrument **was acknowledged before me** on

Charles D. Sputh and Art Lutschunia

Charle

s

Septe
mba
21.

21, 2012 **as the** President
and Board Membrespectively, of **Wilmette** Hockey Association, Inc., an Illinois not-for-profit **corporation,** as **one** of **the members** of **NORTH SHORE ICE ARENA, LLC, an** Illinois **limited liability company**.

A

eisarine A
Dauss

Notary
Public

My Commission
expires:

4/28/
2014

STATE OF ILLINOIS

) **SS**

COUNTY OF COOK

OFFICIAL SEAL

LORRAINE A. DAVIS
Notary Public - State of
illinois My Commission
Expire: Apr 28, 2014

by

and

This instrument was acknowledged before me
on

Michae his was before me on

September
27, 2012

as the

respectively, of Winnetka Hockey Club, Inc., an Illinois not-for-profit corporation, one of the members of NORTH SHORE ICE ARENA, LLC, an Illinois limited liability company.

Derraine
Q Leams

Notary
Public

My Commission
expires:

4/28/
2014

OFFICIAL SEAL
LORRAINE A. DAVIS
Notary Public - State of Illinois
My Commission Expires Apr 28,
2014

LEASEHOLD MORTGAGEE CONSENT TO

SECOND AMENDMENT TO GROUND LEASE

The undersigned, AMALGAMATED BANK OF CHICAGO, as trustee ("Amalgamated"), as mortgagee under that certain Leasehold Mortgage, Assignment of Leases and Rents, Security Agreement, and Fixture Filing made by NORTH SHORE ICE ARENA, LLC, an Illinois limited liability company ("Lessee") for the benefit of Amalgamated ("Leasehold Mortgage"), recorded on January 31, 2008 as Document Number 0803133012 in the Official Records of Cook County, Illinois, as may be amended, which encumbers the leasehold estate of Lessee, in Techny Parcel EC-2C legally described on Exhibit A attached hereto, created under and pursuant to that certain Ground Lease for Real Estate Parcel EC-2C dated as of December 1, 2007, by and between Lessee and Chicago Title Land Trust Company, not personally but as Trustee under a Trust Agreement dated December 1, 2007 and known as Trust No. 1114334 ("Lessor"), a Short Form and Memorandum of which was recorded on January 31, 2008 as Document No. 0803133011 in the Official Records of Cook County, Illinois, as amended by that certain First Amendment to Ground Lease dated as of February 5, 2010 between Lessor and Lessee, hereby consents to that certain Second Amendment to Ground Lease between Lessor and Lessee dated as of September 1, 2012 ("Second Amendment") to which this consent is attached, and Amalgamated hereby subordinates the lien of the Leasehold Mortgage to the terms and provisions contained in the Second Amendment.

AMALGAMATED BANK OF CHICAGO

By:

Kelj

o

Printed Name:

FELIPE J. MENDOZ

Its:

MCE PRESIDENT

STATE OF ILLINOIS

SS

ACKNOWLEDGMENT

COUNTY OF COOK

This instrument was acknowledged before me on October 31, 2012, by FELIPE J. MENDOZA as the VICE PRESIDENT of AMALGAMATED BANK OF CHICAGO, who is personally known to me to be the same person whose name is subscribed to the foregoing instrument as such VICE PRESIDENT

My commission expires: 6-5-16

Notary
Public

OFFICIAL SEAL
ANN LONGINO
NOTARY PUBLIC, STATE OF ILLINOIS
MY COMMISSION EXPIRES
JUNE 5, 2016

Exhibit A

Legal Description

PART OF LOT **EC-2** IN **TECHNY PARCELS** EC-1 **AND EC**-2, **BEING** A **SUBDIVISION OF PART** OF

THE WEST HALF OF SECTION 14, AND PART OF THE SOUTHEAST QUARTER OF SECTION 15, ALL IN TOWNSHIP 42 NORTH, RANGE 12 EAST OF THE THIRD PRINCIPAL MERIDIAN, ACCORDING TO THE PLAT THEREOF RECORDED FEBRUARY 27, 2004 AS DOCUMENT NUMBER 0405844049 DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHWEST CORNER OF SAID LOT EC-2; THENCE NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING FIVE (5) COURSES AND DISTANCES: 1) NORTH 41 DEGREES 07 MINUTES 39 SECONDS WEST, 115.77 FEET; 2) NORTH 89 DEGREES 55 MINUTES 05 SECONDS WEST, 211.02 FEET; 3) NORTH 26 DEGREES 54 MINUTES 49 SECONDS WEST, 102.88 FEET; 4) NORTH 37 DEGREES 42 MINUTES 01 SECONDS EAST, 173.60 FEET; 5) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 687.48 FEET FOR THE PLACE OF BEGINNING; THENCE CONTINUING NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING THREE (3) COURSES AND DISTANCES: 1) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 36.58 FEET; 2) NORTH 42 DEGREES 59 MINUTES 46 SECONDS WEST, 402.42 FEET; 3) NORTH 81 DEGREES 38 MINUTES 35 SECONDS WEST, 102.67 FEET; THENCE NORTH 56 DEGREES 07 MINUTES 43 SECONDS EAST, 594.75 FEET TO THE EASTERLY LINE OF SAID LOT EC- 2, SAID LINE ALSO BEING THE WESTERLY LINE OF HERETOFORE DEDICATED FOUNDERS DRIVE; THENCE SOUTHERLY ALONG THE EASTERLY LINE OF SAID LOT EC-2 THE FOLLOWING TWO (2) COURSES AND DISTANCES: 1) ALONG AN ARC OF A CURVE CONCAVE TO THE EAST AND NONTANGENT TO THE LAST DESCRIBED LINE, HAVING A RADIUS OF 780.00 FEET, HAVING A CHORD BEARING OF SOUTH 22 DEGREES 31 MINUTES 41 SECONDS EAST, 401.93 FEET TO A POINT OF REVERSE CURVATURE; 2) ALONG AN ARC OF A CURVE CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 2540.00 FEET, HAVING A CHORD BEARING OF SOUTH 36 DEGREES 00 MINUTES 59 SECONDS EAST, 112.94 FEET; THENCE SOUTH 56 DEGREES 07 MINUTES 43 SECONDS WEST ALONG A LINE NONTANGENT TO THE LAST DESCRIBED CURVE, 385.88 FEET TO THE PLACE OF BEGINNING, IN COOK COUNTY, ILLINOIS.

PIN:

04-14-305-005-0000

Address: 2111 Founders Drive, Northbrook, Illinois 60062.

Cash Flow Projections

[See Attached]

NORTH SHORE

ICE ARENA

9/14/12

	2012-2013	2013-2014	2014-2015	2015-2016	2016-2017	2017-2018
REVENUE						
Contract Ice Sales	1,069,036	1,086,187	1,103,628	1,121,366	1,139,405	1,157,751
Tournaments	46,009	47,619	49,286	51,011	52,796	54,644
Men's League	90,925	94,107	97,401	100,810	104,339	107,990
Adult and **Youth Hockey**	86,685	89,719	92,859	96,109	99,473	102,955
Youth Hockey Camps and Clinics	43,044	44,551	46,110	47,724	49,394	51,123
Public Programs and Sales	161,648	167,306	173,162	179,223	185,495	191,988
Lease and Other **Building Revenue**	152,306	157,636	163,154	168,864	174,774	180,891
TOTAL **REVENUE**						

1,649,653
1,687,125
1,725,599
1,765,106
1,805,676 1,847,341

EXPENSES

Payroll

Office
63,577
64,213
64,855
65,503
66,158
66,820

Operations
109,182
110,274
111,377
112,490
113,615 114,751

Toumaments
2,000
2,020
2,040
2,061
2,081
2,102

Men's League
25,902
26,161
26,423
26,687
26,954
27,223

Adult and Youth Hockey
48,320
48,803
49,291
49,784
50,282
50,785

Youth Hockey Camps and Clinics
7,978
8,058
8,138
8,220
8,302
8,385

Public Programs and Sales
0
0
0
0
0
0

Lease and Other Building
0
0

			0	0	0	0
Total Payroll	$256,959.01	259,529	262,124	264,745	267,393	270,066
Other						
Office	56,724	57,291	57,864	58,443	59,027	59,617
Operations	304,494	307,539	310,614	313,721	316,858	320,026
Tournaments	4,350	4,394	4,437	4,482	4,527	4,572
Men's League	30,773	31,081	31,392	31,705	32,023	32,343
Adult **and Youth Hockey**	650	657	663	670	676	683
Youth Hockey Camps and Clinics	10,793	10,901	11,010	11,120	11,231	11,344
Public Programs and Sales	1,400	1,414	1,428	1,442	1,457	1,471

Lease and Other Building Expense	70,981	71,691	72,408	73,132	73,863	74,602
Insurance	47,833	48,311	48,794	49,282	49,775	50,273
Management Fee	42,000	42,420	42,844	43,273	43,705	44,142
Property Taxes	327,034	141,000	142,410	143,834	145,272	146,725
TOTAL EXPENSES	1,153,991	976,227	985,989	995,849	1,005,807	1,015,865
Net Operating Income	495,662	710,898	739,610			
Land Lease	16,000	90,000				
Building Repair Reserve Fund	18,333	20,000				
Debt Service	624,856	622,969				
Cash Available after Debt Services	-163,528	-22,071	124,000			
			20,000			
			620,806			
			-25,196			

769,257 799,868 831,476

154,000 186,000 218,000

20,000 20,000 20,000

628,075 624,775 621,200

-32,818 -30,907 -27,724

NORTH SHORE

2018-2019 2019-2020 **2020-2021** 2021-2022 2022-2023 2023-2024 2024-2025

REVENUE

ICE ARENA

Contract Ice Sales

Tournaments

Men's League

58,536

115,682

60,585

119,731

62,705

123,921

1,176,410 1,195,387 1,214,690 1,234,322 1,254,292 1,274,605 1,295,268

56,556

111,770

Adult and Youth Hockey

106,558 110,288

114,148

Youth Hockey Camps and Clinics

52,912

54,764

56,681

58,665

Public Programs and Sales

198,707

205,662

212,860

220,310

Lease and Other **Building Revenue**

187,223

193,775 200,557

207,577

64,900 67,171

69,522

128,259 132,748 137,394

118,143 122,278 126,557 130,987

60,718 62,843 65,042

228,021 236,002 244,262

214,842 222,362 230,144

TOTAL REVENUE

1,890,136

1,934,094 1,979,251

2,025,643

2,073,309

2,122,288 2,172,620

EXPENSES

Payroll

Office

67,488

68,163

68,845

69,533

70,229

70,931

71,640

Operations

115,899

117,058

118,228

119,411

120,605

121,811

123,029

Tournaments

2,123

2,144

2,166

2,187

2,209

2,231

2,254

Men's League

27,495

27,770

28,048

28,329

28,612

28,898

29,187

Adult **and Youth** Hockey

51,293

51,806

52,324

52,847

53,375

53,909

54,448

Youth Hockey Camps and **Clinics**

8,469 8,554 8,639 8,725 8,813 8,901 8,990

Public Programs and Sales

0 0 0 0 0 0 0

Lease and Other **Building**

0 0 0 0 0 0 0

Total Payroll

272,767 275,495 278,250 281,032 283,843 286,681 289,548

Other

Office

Operations

Toumaments

Men's League

32,993

60,214 60,816 61,424

323,227 326,459 329,723

4,618 4,664

32,666 62,038 62,659

333,021 336,351

63,285 63,918

339,714 343,111

4,710 4,758 4,805 4,853 4,902

33,323 33,656 33,993 34,332

							34,676
Adult and Youth Hockey	690	697	704	711	718	725	732
Youth Hockey Camps and Clinics	11,457	11,572	11,687	11,804	11,922	12,041	12,162
Public Programs and Sales	1,486	1,50 1	1,516	1,531	1,546	1,562	1,578
Lease and Other Building Expense	75,348	76,101	76,862	77,631	78,407	79,191	79,983
Insurance	50,776	51,283	51,796	52,314	52,837	53,366	53,899
Management Fee	44,584	45,030	45,480	45,935	46,394	46,858	47,327
Property Taxes	148,192	149,674	151,171	152,683	154,210	155,752	157,309
TOTAL EXPENSES	1,026,024	1,036,284	1,046,647	1,057,113			

1,067,685 1,078,361

1,089,145

Net Operating Income

Land Lease

864,112

251,000

Building Repair Reserve
Fund

Debt Service

Cash Available after Debt Services

897,810 932,604 968,530 1,005,625 1,043,927 1,083,475

286,000 321,000 358,000 396,000 435,000 435,000

20,000 20,000 20,000 20,000 20,000 20,000 20,000

627,056 621,890 625,672 623,684 621,084 622,715 618,578

-33,944 -30,080 -34,068 -33,154 -31,459 -33,788 9,897

NORTH SHORE

2025-2026 2026-2027 2027-2028

2028-2029

2029-2030 2031-2032

ICE ARENA

REVENUE

Contract Ice Sales

Tournaments

Men's
League

71,955

142,203 147,180

1,316,287 1,337,669 1,359,420

74,474

1,381,549 1,404,062 1,426,966

77,080

79,778

82,570

85,460

152,331

157,663

163,181

168,892

Adult and Youth Hockey

135,572

140,317

145,228
150,311
155,571
161,016

Youth Hockey Camps and Clinics
67,319
69,675
72,114
74,638
77,250
79,954

Public Programs and Sales
252,811

Lease and Other Building Revenue
261,659

238,199 246,536
270,818 280,296

255,165 264,096
290,107 300,260

273,339 282,906

TOTAL REVENUE
2,224,346
2,277,510 2,332,156
2,388,330
2,446,080 2,505,455

EXPENSES

Payroll

Office
72,357
73,080
73,811
74,549
75,295
76,047

Operations
124,259
125,502
126,757
128,024
129,305
130,598

Tournaments
2,276
2,299
2,322
2,345
2,369
2,392

Men's League
29,479
29,774
30,071
30,372
30,676

						30,983
Adult and Youth Hockey	54,993	55,543	56,098	56,659	57,226	57,798
Youth Hockey Camps and Clinics	9,080	9,171	9,262	9,355	9,448	9,543
Public Programs and Sales	0	0	0	0	0	0
Lease and Other Building	0	0	0	0	0	0
Total Payroll	292,443	295,368	298,321	301,305	304,318	307,361
Other						
Office						
Operations						
Toumaments	64,557	65,203	65,855	66,513	67,178	67,850
	346,543	350,008	353,508	357,043	360,614	364,220
	4,951	5,000	5,050	5,101	5,152	5,203

Men's League	35,023	35,373	35,726	36,084	36,445	36,809
Adult and Youth Hockey	740	747	755	762	770	777
Youth Hockey Camps and Clinics	12,283	12,406	12,530	12,656	12,782	12,910
Public Programs and Sales	1,593	1,609	1,625	1,642	1,658	1,675
Lease and Other Building Expense	80,783	81,591	82,407	83,231	84,063	84,904
Insurance	54,438	54,983	55,533	56,088	56,649	57,215
Management Fee	47,800	48,278	48,761	49,248	49,741	50,238
Property Taxes	158,882	160,471	162,076	163,697	165,334	166,987
TOTAL EXPENSES	1,100,036	1,111,037	1,122,147	1,133,369	1,144,702	1,156,149

Net Operating Income

1,124,309 1,166,473 1,210,009 1,254,962 1,301,378 1,349,306

Land Lease

Building Repair Reserve Fund

Debt Service

Cash Available after Debt Services

450,000 450,000 450,000 450,000 450,000 485,360

20,000 20,000 20,000

623,519 617,538 620,634

30,790 78,935 119,374

20,000

622,500

20,000

618,125

162,462 213,253

20,000

617,500

226,446

9/14/12

WHA:

Exhibit C

Contracted Ice Hours by Members'

Year2	NHL Rink Total Annual Hours	NHL Rink Hourly Rate	Studio Rink Total Annual Hours	Studio Rink Hourly Rate	Annual Contract

		Hours		**Hourly Rate**	**Amount**
2012-2013	**727.61**	**$415.00**	**453.00**	**$140.00** $	**365,379.17**
2013-2014	**727.61**	**$**421.23	**453.00**	**$142.10** $	**370,859.86**
2014-2015	**727.61**	**$** 427.54	**453.00**	**$144.23** $	**376,422.76**
2015-2016	**727.61**	**$433.96**	**453.00**	**$146.39** $	**382,069.10**
2016-2017	**727.61**	$440.47	**453.00**	**$148.59** $	**387,800.13**
2017-2018	727.61	**$447.07**	**453.00**	**$** 150.82 $	**393,617.14**
2018-2019	**727.61**	**$453.78**	**453.00**	**$153.08** $	**399,521.39**
2019-2020	**727.61**	**$460.59**			

453.00

$155.38 $

405,514.21

2020-2021

727.61

$ 467.49

453.00

$157.71 $

411,514.21

2021-2022

727.61

$474.51

453.00

$160.07 $

417,770.88

Total 10 Years

$

3,910,551.56

WHC:

	NHL Rink			Studio Rink		
Year	Total Annual Hours	Hourly Rate	Total Annual Hours	Hourly Rate	Annual Contract Amount
2012-2013	912.94	$415.00	79.08	$150.00	446.30	$140.00 $	453,212.61
2013-2014	912.94	$421.23	79.08	$152.25	445.20		

$142.10 $

460,010.80

2014-2015

912.94

$ 427.54

79.08

$154.53

445.20

$144.23 $

466,910.96

2015-2016

912.94

$433.96

79.08

$156.85

445.20

$146.39 $

473,914.63

2016-2017

912.94

$440.47

79.08

$159.20

445.20

$148.59 $

481,023.34

2017-2018

912.94

$ 447.07

79.08

$161.59

445.20

$150.82 $

488,238.70

2018-2019

912.94

$453.78

79.08

$164.02

445.20

$153.08 $

495,562.28

1 Note: **Annual Contract** Amount **may vary from** amounts **determined based** on Total **Annual Hours and Hourly**

Rate due to rounding
differences.

2

Note: Each year for **purposes of the contracts** commences **on the third Monday of August of the** first **calendar year noted and ends on May 31 of the following calendar year (i.e.,** no **contract commitments** for **June**, **July or August** 1 **to the third Monday in August**).

C-1

Year	NHL Rink Total Annual Hours	NHL Rink Hourly Rate	Studio Rink Total Annual Hours	Studio Rink Hourly Rate	Annual Contract Amount
2019-2020	912.94	**$460.59**	**79.08**	**$166.48**	**445.20**	**$155.38**	**$ 502,995.71**
2020-2021	912.94	**$ 467.49**	**79.08**	**$ 168.97**	**445.20**	**$157.71**	$ **510,540.65**
2021-2022	912.94	**$474.51**	**79.08**	**$171.51**	**445.20**	**$160.07**	**$ 518,198.75**
Total 10 Years					**$ 4,850,608.42**

1.

2.

3.

4.

5.

Exhibit D

List of Financing Documents

Loan Agreement dated as of January 1, 2008 between Lessee, WHA, WHC and the Illinois Finance Authority ("IFA") ("Loan Agreement")

Trust Indenture dated as of January 1, 2008 between the IFA and Amalgamated as Trustee ("Trust Indenture")

Tax Exemption Certificate and Agreement dated as of January 1, 2008 among the IFA, Lessee, WFA and WHC ("Tax Agreement")

Leasehold Mortgage, Assignment of Leases and Rents, Security Agreement, and Fixture Filing made by Lessee for the benefit of Amalgamated, recorded on January 31, 2008 as Document Number 0803133012 in the Official Records of Cook County, Illinois ("Current Leasehold Mortgage")

Guaranty Agreement dated as of January 1, 2008 made by WFA and WHC in favor of Amalgamated